

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

COLOR BRANDS, LLC, *Complainant*

v.

AAF LOGISTICS, INC., *Respondent*.

DOCKET NO. 22-18

Served: January 22, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REMAND SCHEDULING ORDER

On January 18, 2024, the Commission issued an Order Affirming Initial Decision In Part and Remanding In Part (“Remand Order”), affirming the determination of a default against AAF Logistics; vacating the reparations amount and the date of injury; and remanding for further proceedings. Remand Order at 5-6. The Commission remanded only two narrow issues: the amount of reparations and the date of injury. Remand Order at 3-5.

Complainant should file a brief with arguments regarding the two issues remanded and should include an appendix of documents supporting its arguments. The brief should include a list of the total amount of damages claimed, broken down by category (for example, insurance premium claims, cargo damage), with citations to supporting documents showing its actual injury. Supporting documents may include an affidavit explaining the facts by someone who demonstrates that they have personal knowledge of the facts.

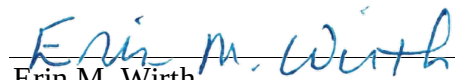
If Complainant is seeking reparations for cargo damage or loss, it should include evidence supporting the amount of actual injury claimed. Complainant should state whether it is aware that Respondent purchased cargo insurance coverage for any of the cargo at issue and if so, whether Complainant submitted a claim for loss. If Complainant received payment under the insurance coverage or was otherwise compensated for the loss, indicate how much was received and reduce the reparations requested accordingly. If any claims were denied, indicate why.

Complainant should specifically address the date(s) of its claim. As noted by the Commission, reparations are only available for actual injury if the complaint is filed within three years after the claim accrues. Remand Order at 3. Complainant may provide any evidence it has regarding the date that the claim was filed, which is the “date it is received by the Commission.” 46 C.F.R. § 502.62(a)(7). Complainant should also propose a date, or dates, of injury and provide argument and evidence supporting the date(s) of injury. All responses should be supported by evidence.

Respondent may file a brief and appendix of supporting documents regarding the two issues remanded for determination. Supporting documents may include an affidavit explaining the facts by someone who has personal knowledge of the facts.

Accordingly, the parties are hereby **ORDERED** to file briefs addressing only the two issues remanded as described above. Complainant shall file its brief and evidence by February 21, 2024. Respondent shall file its response by March 22, 2024.

The parties are reminded that every filing with the Commission should have page numbers, including both their brief and appendix of supporting documents. In addition, it is preferred that the documents in the appendix be consolidated into one PDF document.


Erin M. Wirth
Chief Administrative Law Judge